

Contested Justice

A Processual Framework for Movement Encounters with the Justice System

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Introduction



Madrid, road blockade |
7 October 2019

Introduction



Madrid, criminal trial |
26 May 2026

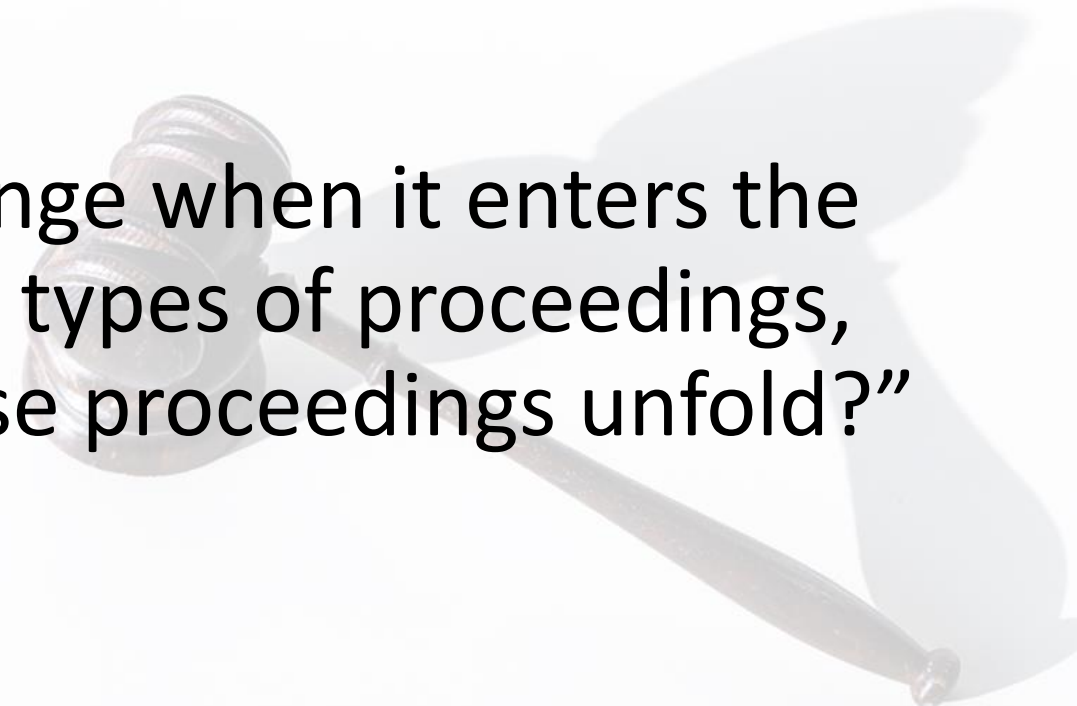
Introduction



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Research Question

“How does political conflict change when it enters the justice system through different types of proceedings, and how does it develop as these proceedings unfold?”



Bringing Two Literatures into Conversation

Legal Mobilization & Strategic Litigation:

- Legal opportunities, resources & expertise, effects of litigation (e.g., Epp 1998; Cichowski 2007; Vanhala 2011; McCann 2017)

Legal Repression, Criminalization, Political Justice:

- Investigation & prosecution, legal defense, trials as spaces of political contention (e.g., Barkan 2006; Kirchheimer 1961; Doherty & Hayes 2016; Ellefsen 2016; Di Ronco 2025)

Common insights:

- Opportunities and constraints
- Connections between court cases and wider political campaigns
- Effects beyond judicial outcomes

Gap: What can we learn by comparing these different legal encounters directly?

Research Design

- **Qualitative comparative research design**
- **Cases**

Same broader political conflict: climate politics in Spain
Different entry into the justice system
- **Processual approach**
- **Empirical material:**
 - Interviews with activists and legal professionals
 - Movement and organizational documents
 - Media reporting
 - Judicial and procedural material
 - Trial-day observation in and around the courthouse
- **Data collection ongoing**

Findings: Entry into the Justice System

First step of analysis: How does political conflict become a legal case?

- In both cases, political conflict is reformulated in legal terms, but what becomes legally relevant differs substantially

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- Claims about governmental legal obligations
- Central question: Is the government legally doing enough?

Madrid criminal trial

- Three activists charged with serious resistance to authority (individual criminal responsibility)
- Central question: Did their conduct amount to criminal resistance?

Findings: Development of the Conflict

Second step of analysis: How does the conflict change as proceedings unfold?



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- Scientists and civil-society actors become involved
- Public framing: climate justice, rights & future generations
- 2023 Supreme Court defeat → further legal and political contestation

Findings: Development of the Conflict



Madrid criminal trial

- Renewed mobilization under changed political conditions
- Prosecution framed as criminalization of activism (outside of the courtroom)
- Courtroom remained focused on individual criminal responsibility

Synthesis

Recurring patterns across the two proceedings

1. Initial legal formulations generate further contestation

Claims, accusations and decisions create new responses

2. Actor constellations change over time

Experts, organizations, supporters, journalists and networks enter at different stages

3. Judicial and political settings become connected

Hearings and decisions are linked to campaigns, media and public mobilization

4. Development is uneven over time

Proceedings can extend over years, with interruption and later reactivation

5. Formal proceedings continue to set limits

Procedural rules structure participation, relevance and legal authority

Processual Framework: Contested Justice

- **SELECTION**

Who and what acquires a recognized position?

- **TRANSLATION**

How is the conflict reformulated?

- **INTERACTION**

Who responds to whom — and from which position?

- **PERFORMANCE**

How and before which audiences is the conflict presented?

CROSS-CUTTING:

- **TEMPORAL**

- **SEQUENCING**

Order | interruption
| reactivation .

- **INSTITUTIONAL
STRUCTURING**

Roles | rules |
categories |
authority

Conclusions

What does the comparison show?

- Different proceedings bring different actors, questions and forms of authority to the fore
- Yet, recurring processes can be identified across very different legal settings

What does the framework add?

- A common language for comparing legal encounters that are usually studied separately without assuming that different proceedings work in the same way
- A way to distinguish setting-specific dynamics from processes that may recur across proceedings

Next steps: Other movements, proceedings & justice systems

THE
END

Thank you for your
attention!



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